

ROBERT K. HANNA, State Bar No.: 341970
JUNQIAO XIAO, State Bar No.: 341670
HYO JIN JULIA JUNG, State Bar No.: 316090
MICHAEL D. KAHN, State Bar No.: 236898
LAMONT FREEMAN, State Bar No.: 349862
MIDLAND CREDIT MANAGEMENT, INC
350 CAMINO DE LA REINA, SUITE 100
SAN DIEGO, CA 92108
Telephone: (866) 300-8750
Facsimile: (858) 309-1588
E-mail: CaliforniaLegal@mcmcg.com
California Debt Collection License #10644-99
Attorneys for Plaintiff

Electronically FILED by
Superior Court of California,
County of Los Angeles
2/21/2025 1:37 PM
David W. Slayton,
Executive Officer/Clerk of Court,
By J. Riveros, Deputy Clerk

SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES
CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT

MIDLAND CREDIT MANAGEMENT, INC.
Plaintiff,
vs.
JOVAN BROWN;
Defendant.

Case No. 24CHLC01076

**DECLARATION RE:
CODE OF CIVIL PROCEDURE § 1033;
INTEREST; AND
EVIDENCE CODE § 1550**

I, the undersigned, declare and state as follows:

1. I am the attorney of record for plaintiff MIDLAND CREDIT MANAGEMENT, INC. ("Plaintiff") in the above entitled action. To the extent that Plaintiff acts in its capacity as successor in interest to the original creditor or its assigns, references herein to Plaintiff may include Plaintiff's predecessor in interest. If called to testify, I could and would competently testify as to all the facts stated in this declaration, except as to those matters testified to upon information and belief, and as to those matters, I believe them to be true.

2. I am an attorney and an employee of Midland Credit Management, Inc. ("MCM"), the servicer of Plaintiff's account. I have access to and have reviewed the electronic records pertaining to the account and am authorized to make this affidavit on Plaintiff's behalf. The electronic records reviewed consist of data acquired from the seller when Plaintiff purchased the account, together with records generated in connection with servicing the account since the day the account was purchased by Plaintiff. In addition, I reviewed the documents that are attached to this affidavit.

1 3. Plaintiff is precluded from filing this case in Small Claims Court per Code of Civil
2 Procedure § 116.420(a).

3 4. The complaint seeks to recover amounts owed by Defendant JOVAN BROWN
4 ("Defendant"). The underlying account that is the basis of the instant lawsuit is a credit account that
5 Defendant held with creditor CITIBANK, N.A., account number: XXXXXXXXXXXXX-2194 (the
6 "Account").

7 5. Prior to filing this complaint, all right, title and interest to the Account was sold and
8 assigned to Plaintiff. Plaintiff owns the Account and stands in the place of the original creditor and is
9 entitled to collect on the Account as if it were the original creditor. Additionally, as owner of the
10 Account, Plaintiff can testify to ownership of the Account and the fact that the debt remains unpaid by
11 Defendant.

12 6. Upon my review of the Plaintiff's records as they pertain to Defendant's account, there
13 were previous transactions between the original creditor and Defendant. Defendant agreed to repay the
14 amount due to the original creditor, and there was a valid assignment of the account from the original
15 creditor to Plaintiff. By using the Account, Defendant expressly agreed or impliedly promised to repay
16 Plaintiff.

17 7. Prior to the commencement of this action, as part of our usual course of business, and
18 pursuant to Code of Civil Procedure § 1033(b)(2), Defendant was notified in writing of the intended legal
19 action and that any judgment entered against the Defendant would include attorney's fees and collections
20 costs. A true and correct copy of the letter sent to Defendant is attached hereto as "Exhibit A".

21 8. When Defendant failed to pay the balance due, Plaintiff filed and served the Complaint in
22 this action. Defendant was served with the complaint on January 18, 2024. A proof of service was filed
23 with the court.

24 9. Upon my review of the Plaintiff's records as they pertain to this case, I further certify
25 that no papers or any responsive pleadings have been served on and received by Plaintiff by the
26 party(s) in default, therefore the allegations of the complaint are deemed admitted by law.

27 10. Plaintiff seeks entry of Defendant's default and judgment as set forth in the Request for
28 Entry of Default Judgment, Judicial Council for 982 (a)(6) filed with this Declaration.

11. Filed as part of this default judgment packet is an affidavit pursuant to Code of Civil Procedure section 585. The affidavit and its attached exhibits establish the account and the obligation.

COSTS AND FEES

12. Pursuant to Code of Civil Procedure § 1033(b)(2), Plaintiff is entitled to recover the actual costs of a filing fee and the actual costs of service of process.

13. It is the normal business and procedure of Plaintiff to microfilm, image or store as electronic media all documents provided by Plaintiff's predecessor-in-interest. The records are microfilmed, imaged or stored as electronic media to facilitate storage and are maintained as part of Plaintiff's regular business practice and procedure. Therefore, Plaintiff requests that all copies of documents produced as part of this default judgment packet, including any affidavits and any documents attached thereto, be accepted in lieu of the original pursuant to Evidence Code § 1550.

I declare under penalty of perjury under the laws of California that the foregoing is true and correct.

Date December 31, 2024

MIDLAND CREDIT MANAGEMENT, INC.

By: 

- ☐ ROBERT K. HANNA
- ☐ JUNQIAO XIAO
- ☐ HYO JIN JULIA JUNG
- ☒ MICHAEL D. KAHN
- ☐ LAMONT FREEMAN

EXHIBIT A

MIDLAND CREDIT MANAGEMENT
LEGAL COLLECTIONS DEPARTMENT

MidlandCredit.com
(877)-898-5001

Our Client: Midland Credit Management, Inc.
Original Creditor: CITIBANK, N.A.
Original Account No.: XXXXXXXXXXXX2194
Current Balance: \$5,067.76
Internal Legal Account No.: 23-21R413

Michael Kahn, State Bar No. 236898
Hyo Jin Julia Jung, State Bar No. 316090

Jovan Brown
P1 T10 19360 Rinaldi St PMB 123
001 Porter Ranch, CA 91326-1607



12/22/2023

REF: CITIBANK, N.A.
Original Account Number: XXXXXXXXXXXX2194

Dear Jovan Brown,

As attorneys with Midland Credit Management, Inc. legal department, we are contacting you regarding the collection of the above balance. Your CITIBANK, N.A. Account, owned by Midland Credit Management, Inc., has now been transferred to our legal collections department due to non-payment. We are currently reviewing documentation (including the attached documents) in preparation for filing a lawsuit against you.

Demand is hereby made upon you for the above payment IN FULL—this is the amount due on your original obligation when transferred to our department. Please send payment **Made Payable to Midland Credit Management, Inc.** by 01/01/2024. You may also make a payment online at MidlandCredit.com.

If we do not receive payment IN FULL by 01/01/2024, we intend to file a lawsuit against you, seeking entry of judgment for your account's outstanding balance as well as any incurred and recoverable court costs. We intend to continue our collection efforts through various post-judgment remedies available under your state's laws if a judgment is obtained against you. If you are unable to pay in full by 01/01/2024 please contact our office at (877)-898-5001 to discuss affordable repayment options.

Your prompt attention is necessary to avoid a lawsuit. Please call (877)-898-5001 no later than 01/01/2024. You may also make a payment online at MidlandCredit.com.

Sincerely,
Attorneys for Midland Credit Management, Inc.

P.S. Attached are copies of some of the documents we received from the original creditor regarding this account.

001941

Visit Us Online
MidlandCredit.com
Call (877)-898-5001
Hours of Operation:
M – Fri: 8:00am – 7:30pm EST
Sat: Closed
Sun: Closed

P.O. Box 2121 Warren, MI 48090

PLEASE SEE REVERSE SIDE FOR IMPORTANT DISCLOSURE INFORMATION

Please tear off and return lower portion with payment in the envelope provided

PAYMENT CERTIFICATE

Internal Legal Account Number: 23-21R413
Original Account Number: XXXXXXXXXXXX2194
Current Balance: \$5,067.76
Amount Enclosed: \$ _____

Jovan Brown
19360 Rinaldi St PMB 123
Porter Ranch, CA 91326-1607

Payment Options:
1) Pay by phone: (877)-898-5001
2) Mail in this certificate with your payment and make check payable to: Midland Credit Management, Inc.



010300001941
0000 0000



P.O. Box 2121 Warren, MI 48090

PRE_002

IMPORTANT DISCLOSURE INFORMATION:

Please understand this is a communication from a debt collector. This is an attempt to collect a debt.
Any information obtained will be used for that purpose.

Calls to and/or from this company may be monitored or recorded.

MAIL PAYMENTS TO: P.O. Box 2121 Warren, MI 48090

MAIL CORRESPONDENCE TO: P.O. Box 2121, Warren, MI 48090

We are required under state law to notify consumers of the following additional rights. This list does not contain a complete list of the rights consumers have under applicable law:

IF YOU LIVE IN CALIFORNIA, THIS APPLIES TO YOU:

California Code of Civil Procedure §1033(b)(2) requires us to notify you that in the event of legal proceedings, such legal proceedings could result in a judgment against you that could include court costs and necessary disbursements under applicable law, if Midland Credit Management, Inc. is found to be legally entitled to the same.

California license number pending.

PRE_002

Account Statement

Send Notice of Billing Errors and Customer Service inquiries to:
BEST BUY CREDIT SERVICES
P.O. Box 790441, St. Louis, MO 63179



My Best Buy[®]
Visa[®] Card

Customer Service:
bestbuy.accountonline.com
Account Inquiries:
1-888-620-5879

Account Number: 2194

Summary of Account Activity

Previous Balance	\$6,549.83
Payments	-\$0.00
Other Credits	-\$0.00
Purchases	+\$0.00
Cash Advances	+\$0.00
Fees Charged	+\$38.00
Interest Charged	+\$154.85
New Balance	\$6,742.68
Past Due Amount	\$1,547.00

Credit Limit	\$0.00
Available Credit	\$0.00
Cash Advance Limit	\$0.00
Available Cash Limit	\$0.00
Amount Over Credit Limit	\$2,242.68
Statement Closing Date	03/28/2019
Next Statement Closing Date	04/26/2019
Days in Billing Cycle	31

Payment Information

New Balance	\$6,742.68
Minimum Payment Due	\$4,050.68
Payment Due Date	April 22, 2019

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee up to \$38.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay	You will pay off the balance shown on this statement in about	And you will end up paying an estimated total of
Only the minimum payment	19 years	\$16,769
\$277	3 years	\$9,974 (Savings=\$6,795)

If you would like information about credit counseling services, call 1-877-337-8188.

For phone payments, you authorize us to electronically debit your specified bank account by an ACH transaction in the amount and on such date that you indicate on the phone. You may cancel a phone payment by calling us at the Customer Service number at the top of page 1 within the timeframe disclosed to you on the phone.

Please note that if we received your pay by phone or online payment between 5 p.m. ET and midnight ET on the last day of your billing period, your payment will not be reflected until your next statement.

Please update your phone number, including cell phone number on the back of the payment coupon.

TRANSACTIONS

Trans Date	Description	Reference #	Amount
03/22	LATE FEE		\$ 38.00
	TOTAL FEES FOR THIS PERIOD		\$ 38.00

8 HM 19

PLEASE SEE IMPORTANT INFORMATION ON PAGE 2.

Page 1 of 4

This Account is Issued by Citibank, N.A.

Please detach and return lower portion with your payment to insure proper credit. Retain upper portion for your records.



PO BOX 6234
SIOUX FALLS, SD 57117-5204

Your Account Number is 2194



Payment Due Date	April 22, 2019
New Balance	\$6,742.68
Past Due Amount [†]	\$1,547.00
Minimum Payment Due	\$4,050.68

Amount Enclosed: \$

[†]Past Due Amount is included in the Minimum Payment Due.
Please print address changes on the reverse side.
Make Checks Payable to ▼

Statement Enclosed

JOVAN BROWN
123
19360 RINALDI ST
PORTER RANCH, CA 91326-1607

BEST BUY CREDIT SERVICES
PO BOX 78009
PHOENIX, AZ 85062-8009

07700 0405066 0674268 0010000 0 2194 1912



0203800001941
0000 0000

Information About Your Account.

How to Avoid Paying Interest on Purchases. Your payment due date is at least 25 days after the close of each billing cycle. We will not charge you any interest on purchases if you pay your New Balance by the payment due date each month. This is called a grace period on purchases. To get a grace period on purchases, you must pay the New Balance by the payment due date every billing cycle. We will begin charging interest on cash advances and balance transfers on the transaction date.

If you have a balance subject to a deferred interest promotion and that promotion does not expire before the payment due date, that balance (an "excluded balance") is excluded from the amount you must pay in full to get a grace period on a purchase balance other than an excluded balance. In addition, if you have a reduced rate credit plan, that balance (an "excluded balance") is excluded from the amount you must pay in full to get a grace period on a purchase balance other than an excluded balance. However, you must still pay any separately required payment on the excluded balance. In billing cycles in which payments are allocated to deferred interest balances first, the deferred interest balance will be reduced before any other balance on the account. However, you will continue to get a grace period on purchases, other than an excluded balance, so long as you pay the New Balance (less any excluded balance, plus any separately required payment on an excluded balance) in full by the payment due date each billing cycle. Deferred interest offers may also be called Same As Cash or No Interest.

In addition, certain promotional offers not described above may also allow you to have a grace period on purchases without having to pay all or a portion of the promotional balance by the payment due date. If that is the case, the promotional offer will describe what happens.

How We Calculate Your Balance Subject to Interest Rate. We use a daily balance method (including current transactions) to calculate interest charges. To find out more information about the balance computation method and how the resulting interest charges were determined, contact us at the Account Inquiries number on the front.

Balance Transfers. Balance transfer amounts are included in the "Purchases" line in the Summary of Account Activity.

Membership Fee. Some accounts are charged a membership fee. To avoid paying this fee, notify us that you are closing your account within 30 days of the mailing or delivery date of the statement on which the fee is billed.

Minimum Interest Charge. If we charge interest, the charge will be no less than \$1.

Other Account and Payment Information.

Payment Amount. You may pay all or part of your account balance at any time. However, you must pay, by the payment due date, at least the minimum payment due.

When Your Payment Will Be Credited. If we receive your payment in proper form at our processing facility by 5 p.m. local time there, it will be credited as of that day. A payment received there in proper form after that time will be credited as of the next day. Allow 5 to 7 days for payments by regular mail to reach us. There may be a delay of up to 5 days in crediting a payment we receive that is not in proper form or is not sent to the correct address. The correct address for regular mail is the address on the front of the payment coupon. The correct address for courier or express mail is the Express Mail Address shown below.

Proper Form. For a payment sent by mail or courier to be in proper form, you must:

- **Enclose** a valid check or money order. No cash, gift cards, or foreign currency please.
- **Include** your name and the last four digits of your account number.

Payment Other Than By Mail.

- **In-Store (Where Available).** Any payment in proper form accepted in-store will be credited as of that day. However, credit availability may be subject to verification of funds. Not all stores accept payments. Contact your local store to see if in-store payments are accepted at that location.
- **Online.** Go to the URL on Page 1 of your statement to make a payment. When you enroll in Online Bill Pay you can schedule your payments up to 45 days in advance using the "Other" payment option. For security reasons, you may not be able to pay your entire New Balance the first time you make a payment online.
- **AutoPay.** Go to the URL on Page 1 of your statement to enroll in AutoPay and have your payment amount automatically deducted each month on your due date from the payment account you choose.

- **Phone.** Call the phone number on Page 1 of your statement to make a payment. There is no fee for this service.
- **Express Mail.** Send payment by courier or express mail to: Consumer Payment Dept., 6716 Grade Lane, Building 9, Suite 910, Louisville, KY 40213.
- **Crediting Payments other than by Mail.** The payment cutoff time for Online bill payments, Phone payments, and Express Mail payments is midnight Eastern time. This means that we will credit your account as of the calendar day, based on Eastern time, that we receive your payment request.

If you send an eligible check with this payment coupon, you authorize us to complete your payment by electronic debit. If we do, the checking account will be debited in the amount on the check. We may do this as soon as the day we receive the check. Also, the check will be destroyed.

Credit Reporting Disputes. We may report information about your account to credit bureaus. If you think we reported inaccurate information, please write us at the Customer Service address shown on Page 1.

Report a Lost or Stolen Card Immediately. Call the Account Inquiries number shown on Page 1.

What To Do If You Think You Find A Mistake On Your Statement. If you think there is an error on your statement, write to us at the address for billing errors and customer service inquiries shown on Page 1 of your statement.

In your letter, give us the following information:

1. Account information: Your name and account number.
2. Dollar amount: The dollar amount of the suspected error.
3. Description of Problem: If you think there is an error on your bill, describe what you believe is wrong and why you believe it is a mistake.

You must contact us within 60 days after the error appeared on your statement.

You must notify us of any potential errors in writing. You may call us, but if you do we are not required to investigate any potential errors and you may have to pay the amount in question.

While we investigate whether or not there has been an error, the following are true:

- We cannot try to collect the amount in question, or report you as delinquent on that amount.
- The charge in question may remain on your statement, and we may continue to charge you interest on that amount. But, if we determine that we made a mistake, you will not have to pay the amount in question or any interest or other fees related to that amount.
- While you do not have to pay the amount in question, you are responsible for the remainder of your balance.
- We can apply any unpaid amount against your credit limit.

Your Rights If You Are Dissatisfied With Your Credit Card Purchases. If you are dissatisfied with the goods or services that you have purchased with your credit card, and you have tried in good faith to correct the problem with the merchant, you may have the right not to pay the remaining amount due on the purchase.

To use this right, all of the following must be true:

1. The purchase must have been made in your home state or within 100 miles of your current mailing address, and the purchase price must have been more than \$50. (Note: Neither of these are necessary if your purchase was based on an advertisement we mailed to you, or if we own the company that sold you the goods or services.)
2. You must have used your credit card for the purchase. Purchases made with cash advances from an ATM or with a check that accesses your credit card account do not qualify.
3. You must not yet have fully paid for the purchase.

If all of the criteria above are met and you are still dissatisfied with the purchase, contact us in writing at the address for billing errors and customer service inquiries shown on Page 1 of your statement.

While we investigate, the same rules apply to the disputed amount as discussed above. After we finish our investigation, we will tell you our decision. At that point, if we think you owe an amount and you do not pay, we may report you as delinquent.

BEY MC NA FEB18

1A/ HM - 3358-7203-0001 - N2 - BZ - 4158968898 - S - JC/ E - D - X - 11 - JD/ P - B - - - - - N - JE/ 7 - - - - - D - Q - JF/ 21/23/19 - 07/21/18 - 32 - February 25, 2019
/DI/ N - - - - - JF/ 0 - - - - - YXKB - Y - JF/ V - - - - - D - - - - - JF/ - - - - - 18A05 - - - - - 0618

Page 2 of 4

Please provide change of address and update/add your phone numbers here: (Use blue or black ink.)

.....

*Cell: *Home:

*Phone: By giving us a cell number or a number later converted to a cell number, you agree that we or our service providers can contact you at that number by autodialer, recorded or artificial voice, or a text. Your phone plan charges may apply.

Account: **** * 2194

TRANSACTIONS (cont.)

Trans Date	Description	Reference #	Amount
INTEREST CHARGED			
03/28	INTEREST CHARGE ON PURCHASES		\$ 154.85
	TOTAL INTEREST FOR THIS PERIOD		\$ 154.85

2019 Totals Year-to-Date	
Total Fees Charged in 2019	\$114.00
Total Interest Charged in 2019	\$437.17

ACTIVITY AND PROMOTIONS DETAIL

	Original Promotion Trans Amount	Promo Trans Date	Previous Balance	Payments & Other Credits	Purchases, Cash Adv., Fees & Other Debits	Interest Charged	New Balance	Promotion Minimum Payment Due	Deferred Interest Charges	Promotion Expiration Date
PURCHASES										
REGULAR			\$5,549.83		\$38.00	\$154.85	\$5,742.68			
CASH ADVANCES										
REGULAR										
TOTAL			\$5,549.83	\$0.00	\$38.00	\$154.85	\$5,742.68	\$0.00	\$0.00	

INTEREST CHARGE CALCULATION				Your Annual Percentage Rate (APR) is the annual interest rate on your account.
Type of Balance	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charge	
PURCHASES				
REGULAR	27.49% (M)(V)	\$8,632.95	\$154.85	
CASH ADVANCES				
REGULAR	30.24% (M)(V)	\$0.00	\$0.00	
(V) = Variable Rate				

201612



0307000901941
0000 0000

204612